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BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

DATED: 23-10-2026

CORAM

THE HON'BLE MR JUSTICE G.R.SWAMINATHAN

AND

THE HON'BLE DR.JUSTICE P.MURUGAN

WP Crl.(MD) No. 5804 of 2026

CNR:{HCMD011529392026}

M.Arockia Pamila
W/o.Iyyappan,
No.4/210, Valar Nagar Street,
Thambathukonam,
Nagercoil,
Kanyakumari District - 629 704.

..Petitioner(s)

Vs

1. The Superintendent of Police,
   Central Prison,
   Palayamkottai.

2. The Inspector of Police
   Rajakkamangalam Police Station,
   Kanyakumari District.

..Respondent(s)

Prayer: Writ petition filed under Article 226 of the Constitution of India, to issue a Writ of Certiorarified Mandamus, calling for the records relating to the impugned order passed by the first respondent vide his proceedings in No.4393/ThaKu.2/2026 dated 07.10.2026 and quash the same as illegal and void, consequential direction may be issued to the first respondent to grant six days emergency leave without police escort to Iyyappan, S/o.Selvaraj, PID No.159542, now confined at Central Prison, Palayamkottai forthwith considering the representation dated 06.09.2026.

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For Petitioner(s): Mr.C.Karthikeyan

For Respondent(s): Mr.C.Christopher,
Additional Public Prosecutor.

ORDER

Heard both sides.

2.The petitioner's husband(Iyyappan) is undergoing life sentence at Central Prison, Palayamkottai(PID No.159542). The petitioner alleged that her mother-in-law is suffering from serious illness and she wanted to meet her son / petitioner's husband. Hence, she seeks six days emergency leave for her husband.

3.Considering the special facts and circumstances pleaded in the writ petition, we direct the first respondent to grant three(3) days emergency leave for the convict from 28.10.2026 to 30.10.2026 without escort. The impugned order is accordingly set aside and this writ petition stands allowed accordingly in the following terms:-

(a)The convict prisoner, Iyyappan [PID No.159542], now detained in the Central Prison, Palayamkottai is granted three(3) days emergency leave without escort from 28.10.2026 to 30.10.2026

(b) The convict prisoner shall be released from the prison at 5.00 pm., on 27.10.2026 and he shall return to the

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prison at 10.00 am., on 31.10.2026.

(c) During the said leave period, he shall report before the second respondent police daily at 7.00 p.m., from 28.10.2026 onwards without fail.

(d) During the leave period, the convict prisoner shall abide by all the conditions prescribed in the Jail Manual.

4.With the above direction, the Writ Petition stands allowed. No costs.

(G.R.S.,J.) **(P.M.N.,J.)**
23-10-2026

Index: Yes/No
Speaking/Non-speaking order
Neutral Citation: Yes/No

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To

1. The Superintendent of Police,
   Central Prison,
   Palayamkottai.

2. The Inspector of Police
   Rajakkamangalam Police Station,
   Kanyakumari District.

3. The Additional Public Prosecutor,
   Madurai Bench of Madras High Court,
   Madurai.

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G.R.SWAMINATHAN, J.
AND
DR.P.MURUGAN, J.

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